



Game Act 1970

1970 CHAPTER 13

An Act to amend the Game Act 1831; and to repeal section 10 of the Revenue Act 1911. [26th March 1970]

WHEREAS the Game Act 1831 provides penalties for the killing and taking of game on certain days and during certain seasons, for laying poison to kill game, and for the buying, selling or possession of game out of season, and the said penalties, by reason of the fall in the value of money, are now inadequate:

And whereas the sale out of season of live game birds for rearing or exhibition purposes ought to be permitted:

And whereas the invention of modern devices for the freezing and keeping of meat has rendered inappropriate the prohibition on the possession of game out of season:

Be it therefore enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Amendment
of Game
Act 1831.
1831 c. 32.

1.—(1) The following amendments and repeals shall have effect in the Game Act 1831:—

- (a) in section 3, for the words “one pound” there shall be substituted the words “five pounds”, and for the words “ten pounds” there shall be substituted the words “twenty pounds”;
- (b) in section 4, for the words “one pound” there shall be substituted the words “five pounds”;
- (c) in section 4, the following words shall cease to have effect and are hereby repealed:—
 - (i) “or knowingly have in his house, shop, stall, possession, or control”;

(ii) “or shall knowingly have in his house, possession or control any bird of game (except birds of game kept in a mew or breeding place) after the expiration of forty days (one inclusive and the other exclusive) from the respective days in each year on which it shall become unlawful to kill or take such birds of game respectively as aforesaid”;

(iii) “or found in his house, shop, possession or control”;

(d) in section 4, after the words “any bird of game”, in both places where those words occur in the section as amended as above, there shall be inserted the words “(except live birds for rearing or exhibition purposes or for sale alive)”.

(2) Section 10 of the Revenue Act 1911 is hereby repealed. 1911 c. 2.

(3) The amendments made by this Act in section 4 of the Game Act 1831 shall have effect also in that section as applied 1831 c. 32. by any subsequent enactment.

2.—(1) This Act may be cited as the Game Act 1970, and shall come into force on the second day of February 1971.

Short title
and
commence-
ment.

(2) Nothing in this Act extends to Northern Ireland.